

02:00 PM **LINE 8**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Third Amended Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 12

TENTATIVE RULING:

Plaintiff Kevin Ramos has moved to compel further responses from defendant San Mateo County Transit District to Plaintiff's Special Interrogatories, Set No. 12 (SROGs).

Plaintiff's Third Amended Motion to Compel Further Responses to SROGs Set No. 12 is **CONTINUED** to August 12, 2026 at 2:00 p.m.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered injury and damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Plaintiff served his SROGs Set No. 12 on defendant on November 18, 2026, along with his SROGs Set No. 13 and Requests for Admission Set No. 5. Defendant responded to all three sets of discovery on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff initially filed a motion to compel further responses on all three sets of discovery to January 8, 2026. However, the Court *sua sponte* ordered the motion off-calendar and scheduled an IDC instead. (Order, January 16, 2026.) The parties did not resolve the discovery dispute at the IDC and Plaintiff filed a motion to compel on March 11, 2026. Plaintiff filed a "First Amended" and Second Amended" version of the motion on March 26, 2026, and a "Third Amended" version on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The Court scheduled an IDC hearing for plaintiff's SROGs Set No. 13 and RFAs Set No. 5 for February 26, 2026, and a hearing for SROGs Set No. 12 and plaintiff's Form Interrogatories Set No. 2, on March 16, 2026. However, the discussions at the February 26, 2026 hearing

covered all four motions and the later hearing was vacated. (Minute Order, February 26, 2026.) There, the Commissioner found that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, at pp.1-2.) The Commissioner noted that, *inter alia*, "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (*id.*, at p. 2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon Plaintiff's earlier motion to compel further responses to his Request for Production ("RFP"), Set One. (*Id.*, at p. 3; see Minute Order, December 17, 2025.) Accordingly, the Commissioner noted that Plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, February 26, 2026, at p. 3.)

Plaintiff disputes the Commissioner's characterization that plaintiff's discovery requests were related solely to investigating how defendant performed a diligent search and reasonable inquiry in its response to his RFP Set No. 1. (Ramos Decl., ¶ 10.) As to this motion, each of the 66 special interrogatories to which plaintiff seeks further responses are aimed at defendant's efforts to respond to plaintiff's RFP Set No. 1. Plaintiff himself acknowledges this: "PLAINTIFF's special interrogatories generally span inquiries about DEFENDANT's efforts to locate & produce the records requested in PLAINTIFF's Request for Production Set #1." (MPA, at p. 6:11-13.)

Plaintiff brings the instant Motion seeking to compel defendant to respond further to the 66 outstanding special interrogatories of the 68 special interrogatories in SROGs Set No. 12.

B. The Court Lacks Sufficient Evidence to Rule Upon the Motion

Defendant argues that the 68 special interrogatories in SROGs Set No. 12 alone are nearly double the limit of 35 for which no supporting declaration is needed justifying the requests is needed, and that plaintiff has served over 360 special interrogatories on defendant in this matter. (Opp., at p. 1:17-28.) Defendant argues, in part, that plaintiff's declaration justifying additional interrogatories fails to comply with the requirements of Code of Civil Procedure, section 2030.050, subdivision (b). Defendant's supporting declaration states that a copy of plaintiff's SROGs Set No. 12 is attached as Exhibit A to the Declaration of Danielle Lewis. (Lewis Decl., ¶ 4.) However, defendant failed to attached Exhibit A – and all of its other exhibits – to that declaration.

Plaintiff does not directly address the issue of his supporting declaration but disputes defendant's claim that he has propounded over 360 special interrogatories. Plaintiff claims he only propounded 26 interrogatories prior to serving SROGs Set No. 12, which includes 68 special interrogatories. However, plaintiff acknowledges that he served SROGs Sets Nos. 13 and 14 – which include 31 and 4 special interrogatories, respectively – concurrently with SROGs Set No. 12. This court heard plaintiff's motion to compel further responses to the four interrogatories in SROGs Set No. 14 on July 15, 2026, and Plaintiff has acknowledged in his reply here that he is not seeking to compel further answers to SROGs No. 13. Plaintiff did not address any special interrogatories served after SROGs Sets Nos. 12-14.

Among plaintiff's exhibits is a declaration justifying additional discovery for SROGs Set No. 13. (Ramos Decl., exh. 47, at pp. 31-32 [the page numbers include plaintiff's notice, MPA, declaration, exhibits, and separate statement, all filed as one PDF].) While the language in the declaration in support of SROGs Set No. 13 appears to match that described in defendant's opposition brief regarding SROGs Set No. 12, the court cannot accept allegations made in the opposition brief as evidence, which must be supported by a sworn declaration or evidence submitted therewith.

The number of interrogatories propounded by plaintiff and the sufficiency of his declaration justifying additional discovery relevant to this motion. Neither party has properly submitted evidence supporting their arguments on these issues.

The court therefore orders as follows:

- The hearing of this motion is continued to August 12, 2026 at 2:00 p.m.
 - No later than July 29, 2026, defendant shall file a supplemental declaration with the exhibits inadvertently omitted from its previous supporting declaration, along with any declaratory statements or exhibits evidencing the number of special interrogatories served by plaintiff in this matter. Defendant may concurrently file a supplemental opposition brief, not to exceed ten pages in length, addressing the sufficiency of plaintiff's SROGs Set No. 12 declaration justifying additional discovery and the totality of special interrogatories propounded by plaintiff on defendant in this matter.
 - No later than August 5, 2026, plaintiff may likewise file a supplemental reply brief not to exceed ten pages and a supplemental declaration addressing those same issues.
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02:00 PM **LINE 9**

25-CIV-04047

EDAS GILBERTO ISLAULA GARCIA VS. SILICON VALLEY LOGISTICS, LLC

EDAS GILBERTO ISLAULA GARCIA
SILICON VALLEY LOGISTICS, LLC

KANE MOON
TIM L. JOHNSON

Plaintiff's Motion for Preliminary Approval of Class and Representative Action Settlement

TENTATIVE RULING:

Plaintiff Edas Gilberto Isaula Garcia's Motion for Preliminary Approval of Class Action and PAGA Settlement is **GRANTED**. Plaintiff's counsel is **ORDERED TO APPEAR** to discuss a final approval hearing date.

The parties have agreed to a settlement in the amount of \$150,000 of which the parties estimate the Net Settlement Amount to be \$57,000. The Settlement allocates \$15,000 to resolve the PAGA claims and provides for a payment of 75% of that amount, that is, \$9,750 to the California Labor and Workforce Development. The remaining \$5,250 will be distributed among the aggrieved employees. The Settlement provides for an estimated payment of \$178.13 to each of the estimated 320 class members and \$20.67 to each aggrieved employee.

In ruling on class action and PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [a "trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 ["The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement."]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

Review of a proposed class action settlement typically involves a two-step process: preliminary approval and a subsequent final approval hearing. (*Cellphone Termination Fee Cases* (2009) 180 Cal.App.4th 1110, 1118; Cal. Rules of Court, rule 3.769; Code. Civ. Proc., § 581, subd. (k).)

Precertification settlements in class actions should be scrutinized carefully. (*Cho v. Seagate Technology Holdings, Inc.* (2009) 177 Cal.App.4th 734, 743 (*Cho*).) Precertification settlements are routinely approved where they are found fair, adequate and reasonable. (*Ibid.*; see also *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 240 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) "Due regard," ... "should be given to what is otherwise a private consensual agreement between the parties. The inquiry "must be limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between,